

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF PULUDI AND OTHERS v. RUSSIA

(Applications nos. 43655/21 and 19 others –
see appended list)

JUDGMENT

STRASBOURG

8 February 2024

This judgment is final but it may be subject to editorial revision.



In the case of Puludi and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Peeter Roosma*, President*,
Ioannis Ktistakis,
Andreas Zünd*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 18 January 2024,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. Some applicants also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014, and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention and its Protocols, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention and its Protocols in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a

prosecuting party in the proceedings under the Code of Administrative Offences (the CAO); *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, relating to the lack of suspensive effect of an appeal against the sentence of administrative detention; and *Sergey Zolotukhin v. Russia* [GC], no. 14939/03, §§ 78-84, ECHR 2009 and *A and B v. Norway* [GC], nos. 24130/11 and 29758/11, §§ 117-34, 15 November 2016 and *Korneyeva*, cited above, §§ 62-65 as to the right of the organisers or participants of public assemblies not to be tried and punished twice for the same offence.

V. REMAINING COMPLAINTS

14. Some applicants raised further additional complaints under Article 6 of the Convention concerning other aspects of fairness of the administrative-offence proceedings. In view of the findings in paragraph 13 above, the Court considers that there is no need to deal separately with these remaining complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints under Article 6 of the Convention;

4. *Holds* that these complaints disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*

(a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 8 February 2024, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Peeter Roosma
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	43655/21 07/08/2021	**Yelena Sergeyevna PULUDI** 2000		Rally "Free Navalnyy" Kazan 31/01/2021	article 20.2 § 5 of CAO	Fine of RUB 10,000	Supreme Court of the Republic of Tatarstan 24/03/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report between 31/01/2021 and 01/02/2021.	4,000
2.	43682/21 09/08/2021	**Andrey Vitalyevich KLIMENKO** 1990	Pomazuyev Aleksandr Yevgenyevich Vilnius	Rally "Free Navalnyy" Penza 23/01/2021	article 20.2 § 5 of CAO	Fine of RUB 20,000	Penza Regional Court 04/03/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station on 23/01/2021 for compiling an offence report, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
3.	43690/21 06/08/2021	**Mikhail Mikhaylovich PRUSAKOV** 1996	Nazarov Ilya Yulyevich Moscow	Rally "Free Navalnyy" Moscow 02/02/2021	article 20.2 § 6.1 of CAO	detention for 7 days	Moscow City Court 08/02/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 11.46 p.m. on 02/02/2021 until 5.00 p.m. on 03/02/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings,	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
								Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	
4.	43739/21 23/08/2021	**Ilshat Rinatovich ZARIPOV** 2001	Pomazuyev Aleksandr Yevgenyevich Vilnius	Rally "Free Navalnyy" Kazan 31/01/2021	article 20.2 § 5 of CAO	Fine of RUB 10,000	Supreme Court of the Republic of Tatarstan 03/03/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 2.50 p.m. on 31/01/2021 until 01/02/2021 (unspecified hour).	4,000
5.	46689/21 31/08/2021	**Mark Yulianovich SELITSKIY** 1999		Opposition rally Rostov-on-Don 31/01/2021	article 20.2 § 6.1 of CAO	Fine of RUB 10,000	Rostov Regional Court 02/03/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
6.	47119/21 04/09/2021	**Mariya Yevgenyevna NUYKINA** 1999	Misakyan Tumas Arsenovich Moscow	Rally to support Sergey Furgal Khabarovsk 26/12/2020	article 20.2 § 6.1 of CAO	detention for 1 day	Khabarovsk Regional Court 12/03/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	5,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal offence	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
7.	46068/22 08/09/2022	**Sergey Aleksandrovich FALALEYEV** 1971	Yermilova Natalya Pavlovna Yekaterinburg	Protest against war in Ukraine Yekaterinburg 06/03/2022	article 20.2 § 5 of CAO	Fine of RUB 20,000	Sverdlovsk Regional Court 13/07/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 2.00 p.m. until 8.00 p.m. on 06/03/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
8.	46237/22 11/09/2022	**Bulat Konstantinovich NIZAMIYEV** 1994	Sabirov Rim Faridovich Kazan	Protest against war in Ukraine Kazan 02/03/2022	article 20.2 § 5 of CAO	Fine of RUB 10,000	Supreme Court of the Republic of Tatarstan 11/05/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 7.30 p.m. on 02/03/2022 until 03/03/2021.	4,000
9.	47613/22 17/09/2022	**Viktor Vladimirovich KUCHERYAVYY** 1951	Gak Irina Vladimirovna Rostov-on-Don	Protest against war in Ukraine Taganrog 05/03/2022	article 20.2 § 2 of CAO	Fine of RUB 25,000	Rostov Regional Court 17/05/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 8.00 a.m. until 7.30 p.m. on 06/03/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings, Prot. 7 Art. 4 - right not to be tried or punished twice in criminal proceedings - overlap of the facts constituting the basis for the applicant's prosecution in the second set of proceedings (Art. 20.2 § 2 of CAO) with substantially the same facts underlying his conviction in the first set of proceedings (Art. 20.3.3 §1 of CAO).	4,000

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10.	47986/22 19/09/2022	**Yelena Aleksandrovna KOROSTELEVA** 1994	Shchukin Andrey Yevgenyevich Nizhniy Tagil	Protest against war in Ukraine Yekaterinburg 02/03/2022	article 20.2 § 5 of CAO	20 hours of community work	Sverdlovsk Regional Court 28/07/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 7.40 p.m. until 11.40 p.m. on 02/03/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
11.	48305/22 03/10/2022	**Mariya Gennadyevna NIKOLAYEVA** 1985		Protest against war in Ukraine Moscow 24/02/2022	article 20.2 § 5 of CAO	Fine of RUB 10,000	Moscow City Court 03/08/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 7.15 p.m. on 24/02/2022 until 12.40 a.m. on 25/02/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000
12.	48323/22 16/09/2022	**Galina Aleksandrovna SAKHAREVICH** 1992	Malinina Yuliya Valeryevna Moscow	Protest against war in Ukraine Moscow 26/02/2022	article 20.6.1 §1 of CAO	Fine of RUB 30,000	Moscow City Court 07/06/2022	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	3,500
13.	48346/22 16/09/2022	**Olga Lvovna GORELIK** 1981	Yelanchik Oleg Aleksandrovich Moscow	Protest against war in Ukraine Moscow 06/03/2022	article 20.2 § 5 of CAO	Fine of RUB 20,000	Moscow City Court 15/08/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 4.00 p.m. until 8.00 p.m. on 06/03/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

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14.	50568/22 07/10/2022	**Anzhelika Sergeyevna KAZANTSEVA** 1999		Protest against war in Ukraine Perm 24/02/2022	article 20.2 § 5 of CAO	Fine of RUB 10,000	Perm Regional Court 07/06/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 7.15 p.m. until 11.00 p.m. on 24/02/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings -	4,000
15.	50874/22 28/09/2022	**Marina Dmitriyevna POPOVA** 1993	Baranova Natalya Andreyevna Moscow	Protest against war in Ukraine St Petersburg 28/02/2022	article 20.2 § 2 of CAO	Fine of RUB 10,000	St Petersburg City Court 31/05/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report from 8.30 p.m. on 28/02/2022 until 2.30 a.m. on 01/03/2022	4,000
16.	11254/23 18/02/2023	**Andi Nikolayevich ARIPOV** 2003		Protest against war in Ukraine Moscow 06/03/2022	article 20.2 § 5 of CAO	Fine of RUB 10,000	Moscow City Court 19/10/2022		3,500
17.	12065/23 02/03/2023	**Diana Olegovna KOROBEYNIKOVA** 1996	Aksenova Darya Dmitriyevna Kolomna	Protest against war in Ukraine Moscow 06/03/2022	article 20.2 § 5 of CAO	Fine of RUB 10,000	Moscow City Court 03/11/2022		3,500

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18.	13077/23 08/03/2023	**Polina Andreyevna BIRYUKOVA** 2000		Protest against war in Ukraine Moscow 24/02/2022	article 20.2 § 5 of CAO	Fine of RUB 15,000	Moscow City Court 09/11/2022	Art. 5 (1) - unlawful detention - Escorting to and detention at the police station after compiling an offence report from 7.30 p.m. on 24/02/2022 until 1.00 a.m. on 25/02/2022	4,000
19.	14342/23 03/03/2023	**Konstantin Yevgenyevich FROLOV** 1997	Nemanov Vladimir Sergeyevich Moscow	Protest against war in Ukraine Moscow 27/03/2022	article 20.2 § 5 of CAO	Fine of RUB 10,000	Moscow City Court 13/07/2022 (The administrative case was returned to the first-instance court (the Gagarinskiy District Court in Moscow) and was available in its registry on 3 November 2022 (the applicant submits a copy of the electronic tracking system available on the District Court's Internet site). The applicant alleges that the appeal decision has never been sent to him and that he could obtain a copy of it only in December 2022, after the case file was	Art. 5 (1) - unlawful detention - escorting to the police station on 01/04/2022 and lack of administrative detention record, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings.	4,000

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							returned from the appeal court to the first-instance court.)		
20.	16917/23 07/08/2021	**Aleksandr Sergeyevich PULUDI** 1987		Rally "Free Navalnyy" Kazan 31/01/2021	article 20.2 § 5 of CAO	Fine of RUB 10,000	Supreme Court of the Republic of Tatarstan 24/03/2021	Art. 5 (1) - unlawful detention - escorting to and detention at the police station for compiling an offence report between 31/01/2021 and 01/02/2021.	4,000

[1] Plus any tax that may be chargeable to the applicants.